STATE OF VERMONT

SUPERIOR COURT **CIVIL DIVISION**

Unit **Case No. _____**

Plaintiff(s)	*Defendant(s)*
	VS.

SMALL CLAIMS ANSWER

See the *Small Claims Information and Instructions for Defendant* (form 100-00259) for information about responding to a small claims complaint.

1. ANSWER *(Choose one: agree or disagree)*:

☐ **I disagree** I owe the full amount claimed in the complaint or counterclaim. I disagree because:

Add additional pages if needed.

☐ **I agree** I owe the full amount claimed in the complaint or counterclaim. The court may enter a judgment against me. I understand if I don't pay the judgment immediately, interest may accrue at 12% per year. I have read paragraph 2 about Exempt Income and Property. *(Choose one)*

☐ I will pay the full amount to the other party within 30 days, by _____ *(date)*.

☐ I propose paying the amount owed over time in installments as follows:
$_____ paid every _____ *(example: week, two weeks, month)*, beginning _____ *(date)*.

☐ Other *(describe)*:

_____

_____

Add additional pages if needed.

2. EXEMPT INCOME AND PROPERTY *(optional)*

You may complete this section whether you agree or disagree you owe the money the plaintiff is claiming.
Even if you agree you owe the amount claimed, your income and property may be protected (exempt) from collection. This could mean you may not be required to pay at this time. See the ***Small Claims Information and Instructions for Defendant*** *(form 100-00259) for information about exemptions.*

☐ My income and property may be exempt from collection.

- I have reviewed the *List of Exemptions* (form 100-00511).
- I am filing a *Disclosure of Exempt Income* (form 100-00128) and, if applicable, a *Financial Disclosure* (form 100-00127).

3. COUNTERCLAIM *(optional)*

There is a fee to file a counterclaim. Please submit upon filing.

☐ **I have a counterclaim against the plaintiff**. *(Briefly describe your claim and the amount you're asking for.)*

Add additional pages if needed.

Date: _____

Signature _____

Printed Name _____

Mailing Address

_____

_____

_____

Phone Number _____

Email Address _____

Find information about the small claims process and forms on the Vermont Judiciary's website. Go to www.vermontjudiciary.org and search **small claims**.